DEED OF SURETYSHIP

I/We, the undersigned,

1. Full Name : _____ ID Number : _____
   Address : _____
   Email : _____
   ("First Surety")

2. Full Name : _____ ID Number : _____
   Address : _____
   Email : _____
   ("Second Surety")

3. Full Name : _____ ID Number : _____
   Address : _____
   Email : _____
   ("Third Surety")

hereby bind myself/ourselves jointly and severally as surety/sureties ("Surety/ies") and as co-principal debtor/s (in solidum) to

THE GROCERY EXPRESS (PTY) LTD (2022/676891/07) ("the Supplier")

for the due and punctual performance of any obligations and for the payment of any amounts which may now or from time to time hereinafter be owing by-

_____(Registration Number [_____]
(the Legal Entity / name of the Customer/s ("Customer"))

of_____
(Customer's Address)

in terms of any incidental or other credit or loan facilities granted to the Customer by the Supplier or for any other cause whatsoever or howsoever arising. Any reference to the Customer herein also includes a reference to any third party authorised by the Customer to purchase on the Customer's account.

I/We agree and declare that:

1. This deed of suretyship ("Suretyship") shall be in addition to and without prejudice to any other suretyship or securities now held or hereafter held by the Supplier from or on behalf of the Customer.

2. These presents shall establish a continuing covering liability on my/our part for whatever amount/s are or will be owing by the Customer to the Supplier for the time being and from time to time and notwithstanding:

   2.1. the death, insolvency (which term shall for all the intents and purposes of these presents include sequestration, surrender winding up, whether provisional or final) or legal disability of the Customer or any other surety(ies) for and/or co-principal debtor(s) with the Customer; and/or

   2.2. the Customer becoming subject to any business rescue proceedings; and/or

   2.3. any temporary extinction or repayment under any credit or loan facility secured by this suretyship.

3. The amount of my/our indebtedness hereunder and that of the Customer to the Supplier at any time, shall be *prima facie* established by a certificate signed by the Supplier or a trustee or director of the Supplier, if the Supplier is a company or trust. A certificate in terms hereof shall be *prima facie* proof of the amount of my/our indebtedness hereunder and shall be valid as a liquid document for the purposes of obtaining provisional sentence and/or summary judgment against me/us thereon.

4. The Supplier shall be entitled, without prejudice to its rights and without detracting from my/our liability hereunder, to release any securities or other sureties given to it or to give to or compound with or make any arrangements with the Consumer in regard to the fulfilment of any of the Consumer's obligations as the Supplier in its absolute discretion deems fit.

5. All acknowledgements of indebtedness and admissions by the Customer shall be binding on me/us.

6. No act of relaxation or grace granted by the Supplier to the Customer (including any act of accepting payment after due date or in accepting a lesser sum than the amount due) shall prejudice or affect the Supplier's rights in terms hereof, and if any action(s) by the Supplier result(s) in a novation of the credit agreement or any debt or liability, then I/we undertake and agree to be similarly bound as Surety/ies and co-principle debtors in favour of the Supplier for such novated agreement, debt or liability.

7. My/our liability in terms hereof shall not be affected or diminished by any compromise, reached with the object to prevent, avoid or terminate litigation, which the Customer may reach with the Supplier, and the Supplier shall be entitled to proceed against me/us for payment of any amount, including but not limited to all debts howsoever arising or of whatsoever nature, which would have been owing to the Supplier by the Customer, or any portion thereof, had such compromise not been entered into.

8. I/we renounce the benefits of excussion, division and cession of action, no value received, and revision of accounts, the full meaning and effect whereof I/we know and understand.

9. If this Suretyship has been prepared in a form for signature by more than one surety, then each Surety who signs it acknowledges and records that notwithstanding the fact that it provides for signature hereof by other sureties, there is a separate, distinct, and independent contract of suretyship brought into existence by each Surety who does sign it.

10. Accordingly, if for any reason any Surety herein shall fail to sign this Suretyship for any reason whatsoever or if this Suretyship shall for any reason cease to be or is not binding on any one or more of the Sureties then the obligations of the other(s) shall be and continue to be binding and remain of full force and effect in terms hereof.

11. In the event of the Customer being sequestrated, liquidated, surrendered, or placed under Business Rescue, administration, compromise or arrangement, either by way of statute or otherwise:

    11.1. The Supplier may, in its discretion, decide to institute a claim against such estate and to calculate the extent of such claim, without affecting or diminishing my/our liability in terms hereof;

    11.2. The Supplier shall be entitled to apply all proceeds or payments which are received from the Customer, Trustee, Liquidator, or from any other source, in diminishing the amount owed, without affecting or diminishing my/our liability in terms hereof for payment of any amount which is owing to the Supplier by the Customer after receipt of such proceeds or payments; and

    11.3. My/our liability in terms hereof shall not be affected or diminished by any compromise or composition which the Customer may reach with any creditors or the approval and/or adoption of any Business Rescue Plan, irrespective of whether or not such compromise or Business Rescue Plan was supported by the Supplier, and the Supplier shall be entitled to proceed against me/us for payment of any amount which would have been owing to the Supplier by the Customer, or any portion thereof, had such Compromise not been entered into or Business Rescue Plan approved and/or adopted.

12. In the event of the Supplier instituting legal action against me/us in terms of this Suretyship, I/we will be liable for all legal costs and disbursements incurred by the Supplier on an attorney and own client scale, including cost of counsel, on high court tariff.

13. The Supplier is hereby irrevocably authorised to apply any monies received by it from me/us in terms of this Suretyship against any indebtedness to it of the Customer in such manner as the Supplier in its discretion may deem fit.

14. Any failure by the Supplier to enforce at any time any terms and conditions of this Suretyship, shall not be construed as a waiver of its right thereafter to enforce such terms and conditions. No provisions of this Suretyship shall be deemed waived unless such waiver is in writing and signed by the Supplier.

15. As security for the fulfilment of all obligations herby undertaken I/we hereby cede, assign, transfer and make over unto and in favour of the Supplier all right, title and interest in and to any amounts and claims from whatever source arising and which are now, or which may hereafter become, owing to me/us from any source and from any cause of indebtedness howsoever arising. In the event of any prior ranking cession existing at the date hereof, a foregoing cession in favour of the Supplier shall operate as a cession to the Supplier of any right of action which I/we may now or at any future time have against the prior cessionary.

16. The Supplier shall be entitled to cede (whether out and out or by way of a cession *in securitatem debiti*) all or any portion of its rights in terms of this Suretyship and/or assign its obligations hereunder to any third party without prior notice to me/us and irrespective of whether such cession is made to one or more Cessionaries, or whether such cession results in a splitting of claims. If the Supplier cedes all or any of its rights in terms of this Suretyship, all references to the Supplier in this document shall be deemed to include references to the Cessionary/ies. In such circumstances this Suretyship shall secure the indebtedness of the Customer to such third party that arises after such cession and or assignment as well as the indebtedness of the Customer to the Supplier that arose prior to such cession and or assignment. The cessionary shall be entitled to exercise all rights in term of this suretyship as if such cessionary were the Supplier hereunder.

17. I/We hereby indemnify and hold the Supplier harmless against any damage or loss of whatever nature which the Supplier may sustain arising out of or in connection with the enforcement, cancellation, or invalidity for any reason whatsoever, of any agreement between the Supplier and the Customer. I/We warrant and undertake that the Customer will perform all of its obligations of whatever nature which is at any time owed by it to the Supplier.

18. I/We attach hereto a declaration of my/our assets and warrant that the information contained therein is true and correct. I/We further undertake to notify the Supplier in writing of any additions, reductions or changes to may/our assets which are recorded in the attached declaration within 7 (seven) days form such addition, reduction or change occurring.

19. This Suretyship constitutes the entire agreement between me/us and the Supplier, and no variation thereof shall be of any force or effect unless in writing and signed by both the Supplier and me/us.

20. If any term, clause, or provision of this Suretyship is contrary to or in conflict or inconsistent with any law or the judgment of any competent court, the invalidity or unenforceability of any such term, clause or provision shall not affect the validity of the remainder of this Suretyship, which shall continue to be of full force and effect.

21. I/We acknowledge that no representations whatever have been made to me/us in order to induce me/us to sign this Suretyship.

22. I/We acknowledge that I/we have been free to secure independent legal and/or other advice as to the nature and effect of all of the provisions of this Suretyship and that I/we have either taken such independent legal and/or other advice or dispensed with the necessity of doing so. Further, I/we acknowledge that all of the provisions of this Suretyship are fair and reasonable in all the circumstances.

23. Each signatory who is married warrants and represents to the Creditor that no consent from such signatory's spouse is required in terms of the Matrimonial Property Act No 88 of 1984 (as amended) to bind the joint estate of such signatory and his spouse. Each such signatory acknowledges that he/she knows and understands the full meaning and effect of the aforegoing.

24. I/we choose for the purpose or serving summons, notices, and levying executions (*domicilium citandi et executandi*) the respective physical and email addresses set out above. In the event of service:

24.1. By hand, the notice shall be deemed to have been received by me/us on the date of delivery; or

24.2. By email, the notice shall be deemed to have been received by me/us on the date of transmission.

25. Notwithstanding the above, any notice given in writing in English, and actually received by the party to whom the notice is addressed, will be deemed to have been properly given and received, notwithstanding that such notice was not given in accordance with clause 24.

26. This suretyship shall be governed and construed according to the laws of the Republic of South Africa.

I/WE ACKNOWLEDGE AND CONFIRM THAT THIS SURETYSHIP WAS FULLY COMPLETED AT THE TIME OF SIGNING IT.

AS SURETY:
DATED at _____ on this _____ day of _____20_____

AS WITNESSES

1. _____

Name: _____

ID Number: _____

2. _____

Name: _____

ID Number: _____

_____
FIRST SURETY
Per:
(who warrants that he/she is duly authorised thereto)

AS WITNESSES

1. _____

Name: _____

ID Number: _____

2. _____

Name: _____

ID Number: _____

_____
SECOND SURETY
Per:
(who warrants that he/she is duly authorised thereto)

AS WITNESSES

1. _____

Name: _____

ID Number: _____

2. _____

Name: _____

ID Number: _____

_____

THIRD SURETY
Per:
(who warrants that he/she is duly authorised thereto)

CONSENT OF SPOUSE OF _____ SURETY

AS WITNESSES

1. _____

Name: _____

ID Number: _____

2. _____

Name: _____

ID Number: _____

_____

Full Name:
ID Number:

CONSENT OF SPOUSE OF _____ SURETY

AS WITNESSES

1. _____

Name: _____

ID Number: _____

2. _____

Name: _____

ID Number: _____

_____

Full Name:
ID Number:

CONSENT OF SPOUSE OF _____ SURETY

AS WITNESSES

1. _____

Name: _____

ID Number: _____

2. _____

Name: _____

ID Number: _____

_____
Full Name:
ID Number: